

RESOLUTION AGREEMENT
Minneapolis Public Schools
OCR Case No. 05-22-1171

Minneapolis Public Schools (District) enters into this voluntary Resolution Agreement (Agreement) with the U.S. Department of Education, Office for Civil Rights (OCR), to resolve OCR Case No. 05-22-1171. The District assures OCR that it will take the following actions to resolve the compliance concerns identified by OCR and comply with the requirements of Title IX of the Education Amendments of 1972 (Title IX), at 20 U.S.C. §§ 1681-1688, and Title IX's implementing regulation, 34 C.F.R. Part 106, which prohibit discrimination based upon sex in any education program or activity receiving federal financial assistance. This Agreement does not constitute an admission by the District of a violation of Title IX of the Education Amendments of 1972 (Title IX), or any other law enforced by OCR.

I. NOTICE REQUIREMENT

Within 30 calendar days of executing this Agreement, the District will provide to the Principals and Athletic Directors at each District high school written instructions describing the District's obligations under the terms of this Agreement.

REPORTING REQUIREMENT I:

- 1. Within 30 calendar days of executing this Agreement,** the District will provide OCR with documentation demonstrating that it has provided the notice required in Item I, including copies of any written instructions, email correspondence, or other documentation provided to the high school Principals and Athletic Directors.

II. DISTRICT-WIDE TITLE IX ATHLETICS POLICIES

Within 60 days of signing this Agreement, the District will review, revise, and develop District-wide policies and procedures to ensure the District complies with the requirements of Title IX in its interscholastic athletics program in each of the program components applicable to its high schools (including interests and abilities, equipment and supplies, scheduling of games and practice times, travel and per diem expenses, opportunity to receive and assignment of coaching and academic tutoring, locker rooms, practice and competitive facilities, medical and training services and facilities, publicity). At a minimum, the District will take the following steps:

- a. The District will review any current District policies and procedures, and will develop policies and procedures to ensure compliance with Title IX in the District's provision of interscholastic athletics, with appropriate oversight.
- b. The District will review its funding allocation procedures for athletics, and develop policies and procedures specifically addressing that funding from any sources (*e.g.*, booster clubs) will not create disparities.
- c. The District will provide a forum to receive input and recommendations from the Stakeholder Committee (described below) and will consult, as needed, one or more consultants with Title IX expertise specifically as it relates to athletics.

- d. The District will ensure that the established policies and procedures provide a formal mechanism for the District to receive input from stakeholders, including but not limited to, student athletes and their parents.
- e. The District will further ensure that the District publicizes on its website grievance procedures for complaints that the District is not complying with Title IX in its provision of interscholastic athletics.

REPORTING REQUIREMENTS II:

1. **By October 14, 2024**, the District will provide to OCR for review and approval its proposed policies and procedures to ensure the District complies with the requirements of Title IX in its interscholastic athletics program.
2. **Following OCR's approval of the written policies and procedures**, the District will submit the approved policies and procedures to the District's Superintendent and/or School Board for approval, if necessary. Policies and procedures submitted to the School Board for approval shall be placed on the next available agenda for a regularly scheduled School Board meeting. Within 10 calendar days after any required approval of the written policies and/or procedures, the District will issue the new policies and/or procedures to the Athletic Directors of each high school, the Principals of each high school, and all coaches of interscholastic athletics teams at each high school, and any other individuals responsible for implementing the District's athletics programming.

III. STAKEHOLDER COMMITTEE

The District will establish a Stakeholder Committee to provide input and recommendations to the District as it creates its District-wide policies and procedures to ensure compliance with the requirements of Title IX in the District's interscholastic athletics program. Such stakeholders shall include, at a minimum, student athletes, student athlete parents, former student athletes, interested community members, and will have at least one representative that is an Athletic Director or coach.

The District will provide the Stakeholder Committee a forum to provide feedback and recommendations on the District's Title IX athletics policies and procedures, grievance procedures, and other Title IX athletics compliance issues prior to finalizing the recommended policies and procedures for submission to OCR. The District will provide a written response addressing each of the Stakeholder Committee's recommendations, with a basis for rejecting any recommendation by the Stakeholder Committee the District does not accept.

REPORTING REQUIREMENTS III:

1. **By September 16, 2024**, the District will establish the Stakeholder Committee, and will provide OCR with a list of the members of the Stakeholder Committee, including the member's title and contact information.

2. By **October 14, 2024**, the District will provide OCR with copies of the Stakeholder Committee's written recommendations and identify the steps the District took in response to the Stakeholder Committee's written recommendations, including a copy of the District's written response regarding the Stakeholder Committee's recommendations.

IV. DISTRICT TITLE IX ATHLETICS COMPLIANCE COORDINATOR

By August 6, 2024, the District will appoint a designated Title IX Athletics Compliance Coordinator (Coordinator) to ensure the District's compliance with Title IX and the provisions of this Agreement and provide oversight with respect to each high school's compliance with Title IX in its athletics program.

The Coordinator's responsibilities will include, at a minimum, ensuring each high school Athletic Director is informed of and trained on their responsibilities under Title IX as it pertains to the District's interscholastic athletics at each school, ensuring the District-level athletics program complies with Title IX, ensuring that each school maintains compliance with Title IX in its athletics programming, reviewing the results of school-based and District-wide assessments, ensuring the Stakeholder Committee is provided a forum to provide recommendations and feedback and reviewing / responding to the Stakeholder Committee's feedback, and serving as a liaison between the District and the community to address concerns and / or barriers for students of the underrepresented sex in accessing the District's interscholastic athletics program. The Coordinator additionally will be responsible for ensuring timely and accurate reporting pursuant to this Agreement.

REPORTING REQUIREMENT IV:

1. **By August 15, 2024**, the District will provide OCR with the name and contact information of the Coordinator and identify the Coordinator's qualifications.

V. INTEREST AND ABILITIES

By no later than the 2026-2027 school year, the District will provide opportunities in its interscholastic athletics program for female and male students that equally and effectively accommodate the athletic interests and abilities of members of both sexes at each of its high schools with interscholastic athletics programs.

Demonstration of Compliance

The District has the option to demonstrate compliance at each high school with any one part of the three-part test used by OCR to assess whether the interests and abilities of members of both sexes are being effectively accommodated to the extent necessary to provide an equal opportunity to participate in interscholastic athletics by documenting that:

1. The District is providing interscholastic athletic participation opportunities for female and male students in numbers substantially proportionate to their respective enrollments at each high school (Part I); or

2. The District had a history and continuing practice of interscholastic athletics program expansion at each high school that is demonstrably responsive to the developing interests and abilities of students who are members of the underrepresented sex (Part 2); or
3. The interests and abilities of students who are members of the underrepresented sex at each high school have been fully and effectively accommodated by the District's current interscholastic athletics program (Part 3).

Each part of the three-part test is an equally sufficient and separate method of complying with the Title IX regulatory requirements to provide nondiscriminatory athletic participation opportunities. Additional guidance to institutions on the requirements for compliance with Title IX in athletics programs is provided in the December 11, 1979, Intercollegiate Athletics Policy Interpretation, at 44 *Fed Reg.* 413 *et seq.*

A. Title IX Athletics Assessment and Plan

The District will conduct a full assessment of how it can equally and effectively accommodate the athletic interest and abilities to the extent necessary to provide equal opportunities for female students in its high school interscholastic athletics program using Part 1 or Part 3 of the three-part test at each high school as set forth below. To the extent that the District is not in compliance with Title IX at any high school, the District will create a plan, with timeframes, to increase participation opportunities for female students as necessary to demonstrate compliance with Title IX by the end of the 2026-2027 school year, and will take substantial steps towards equally and effectively accommodating the athletic interest and abilities of females during the 2024-2025 and 2025-2026 school years. The District plan shall include a process or procedure for students or other interested parties, such as coaches or parents, to use in requesting the addition of new sports or levels of sports at the District high school; annual assessments of any barriers to participation for students or other interested parties in the District's interscholastic athletics program or other items unique to the specific circumstances of the high school.

B. Options to Increase Participation Opportunities pursuant to Title IX

For any District high school determined not to be in compliance with Part 1 of the three-part test identified above, **by October 31, 2024**, the District will provide to OCR for review and approval a plan for an objective assessment to determine the athletic interests and abilities of female students and whether the District is fully and effectively accommodating the athletic interests and abilities of female students under Part 3 of the three-part test. The plan for the assessment will be based on multiple indicators of interest and multiple indicators of ability, which may include:

- i. Results of surveys of students or other information collected from students using a method that is designed to fully and accurately assess unmet athletic interests and abilities in sports among female students;

- ii. Identification of sports, squads, and levels of sports for female students that are not currently offered at a District high school but are offered either by schools that compete within the league(s) in which the District competes or by schools that are within the District's normal competitive region and geographic area.
- iii. Review of any requests (whether oral or written, formal or informal) made to administrators, coaches, or staff by or on behalf of female students to add a particular sport, squad, or level of sport, or to elevate an existing club or intramural sport after the District has published procedures for making such requests.
- iv. Identification of sports, squads, and levels of sports for female students that are not currently offered at a District high school but are offered either by schools that compete within the league(s) in which the District competes or by schools that are within the District's normal competitive region and geographic area.
- v. Any club sports in place at the high school, the names of the club sports and the number of female students who participated in the club sports;
- vi. Popular sports offered during physical education courses at the high school and in community sports leagues, clubs or other youth programs offered in the high school's geographic area;
- vii. Whether significant numbers of female students were cut from a high school team;
- viii. Whether interested students at these District high schools have the ability to sustain a Minnesota State High School League (MSHSL) sanctioned sports team, either at the high school or through a school-based or cooperative team, noting that they do not need the ability to sustain a successful or elite team, but only need to show that they have the potential to participate in team try-outs, practices and competitions and, with coaching, the potential to attain sufficient ability to participate at the particular level of competition (varsity, junior varsity, etc.) in which they have expressed interest.
- ix. Whether students at these District high schools have interest in a sport or team not sanctioned by the MSHSL, and whether the school has the ability to sustain interscholastic competition with other schools in the sport in the school's normal competitive region and geographic area.
- x. Any other information that demonstrates the athletic interests and abilities of the students who are members of the underrepresented sex.

C. Additional Commitments to Create Athletic Opportunities for the Underrepresented Sex

For any District high school determined not to be in compliance with Part 1 or Part 3 of the three-part test identified above and determined to have unmet interest in athletic participation, in addition to the steps the District plan identifies to increase athletic participation in their plan under Item V(A), the District will take the following actions:

- i. The District will annually conduct an assessment of any barriers to participation for students or other interested parties in the District's interscholastic athletics program.
- ii. The District will provide written notice on its website at each high school identifying all sports offered at each District high school.
- iii. The District will ensure that each District high school regularly updates its website with a description of the sports offerings at each high school, including at a minimum, the interscholastic and club sports available to male and female students at each high school, the season in which the sport competes, and the name and contact information for the Athletic Directors for each high school.

REPORTING REQUIREMENT V:

1. **By October 31, 2024**, the District will submit to OCR for review and approval, its assessment under Part 1 of the three-part test for each high school. For each high school the District determines to have met Part 1 of the three-part test, the District will provide OCR with total number of students enrolled, the number of male and female students, a list of all teams and levels for each interscholastic athletics team, participation numbers for each team, and a copy of each team's squad/eligibility list. For each high school that does not comply with Part 1, the District will provide a plan (with designated timeframes) consistent with the requirements of Item V(B) to conduct an assessment of the students under Part 3 of the three-part test to determine if the high school equally and effectively accommodates the athletic interests and abilities to the extent necessary to provide equal opportunities for female students in its interscholastic athletics program at each high school. The plan will include, at a minimum, the following information:

- a. For any proposed survey:
 - i. A complete description of the methodology that will be used to conduct the survey, including how the survey will be distributed, the number of surveys that will be distributed, the grade levels of students who will receive the surveys, any planned follow-up to the initial distribution of the survey, the names and contact information for the individual(s) who will analyze the responses to the surveys, and the protocol for retaining a copy of any notes or other documents compiled during the review of the surveys;

- ii. A description of the methodology to ensure that the survey is designed to fully and accurately assess unmet athletic interests and, if applicable, abilities in interscholastic sports among female students;
 - b. For any other type of assessment:
 - i. A complete description of the methodology that will be used to conduct the assessment, including the number and demographics of the students that will be assessed, a description of how the responses to the assessment will be analyzed, the names and contact information for the individual(s) who will analyze the responses to the assessment, and the protocol for retaining a copy of any notes or other documents compiled during the review of the assessment;
 - ii. A description of the methodology to ensure that the assessment is designed to fully and accurately assess unmet athletic interests and, if applicable, abilities in interscholastic sports among female students;
 - c. A summary of sports, squads, and levels of sports for female students that are not currently offered at a District high school but are offered either by schools that compete within the MSHSL, or in schools that are within the District's normal competitive region and geographic area;
 - d. Rates of participation by male and female students in interscholastic sports and club sports for each school;
 - e. A summary of the number of female students who were cut from each high school team and level, and the reasons they were cut;
 - f. A copy of any written requests and a summary of any non-written requests made by or on behalf of female students to add a particular sport, squad, or level of sport, or to elevate an existing club or intramural sport to interscholastic sport status;
 - g. If available, a description of any teams that were eliminated at any of these District high schools during the prior five school years, regardless of gender, including the number of participants who were on the team in the year it was eliminated and the reason for the team's elimination, if known;
 - h. A description of any other information that will be considered by the District as part of its assessment in determining whether it is fully and effectively accommodating the athletic interests and abilities of female students in District high schools.
- 2. **By January 10, 2025**, for any District high school determined not to be in compliance with Part 1 of the three-part test, the District will provide OCR for its review and approval a detailed description of the results of the high school's assessment used to determine the athletic interests and abilities of female students and whether the District is fully and effectively accommodating the athletic interests and abilities of female students conducted pursuant to this Agreement. For any high school the assessment shows not to be in compliance with Part 3 of the three-part test, the District will provide to OCR for a review and approval a plan, with timeframes, to increase participation opportunities for female students as necessary to demonstrate compliance with Title IX by the end of the 2026-2027 school year, including the process or procedure for students or other interested parties, such as coaches or parents, to request the addition of new sports or levels of sports at the District high

school; annual assessments of any barriers to participation for students or other interested parties in the District's interscholastic athletics program or other items unique to the specific circumstances of the high school. The plan will document the steps the District has taken and will take to increase athletic participation during the 2024-2025 and 2025-2026 school years.

3. **By June 30, 2025**, and by that same date annually thereafter, while this Agreement is in effect, the District will provide OCR with a detailed report evaluating whether its interscholastic athletics program equally and effectively accommodates the athletic interests and abilities to the extent necessary to provide equal opportunities for female students at each high school. The report will include a detailed description of the steps the District has taken to date, including the dates the actions were taken, in accordance with the plan identified in Item V(A) of this Agreement and consistent with the commitments in Item V(C). The District will provide supporting documentation showing the enrollment rates and team squad lists for each team at each high school to demonstrate compliance with Part 1 of the three-part test, and for each high school that does not demonstrate compliance with Part 1, the District will provide documentation demonstrating the interests and abilities of female students have been fully and effectively accommodated at each high school to demonstrate compliance with Part 3 of the three-part test.

VI. LOCKER ROOM, PRACTICE AND COMPETITIVE FACILITIES

The District will provide equal athletic opportunity for both sexes in the District's interscholastic athletics program in the provision of locker rooms, practice and competitive facilities at each high school by the end of the 2026-2027 school year, and will take substantial steps towards providing equal athletic opportunity for both sexes in the District's interscholastic athletics program in the provision of locker rooms, practice and competitive facilities during the 2024-2025 and 2025-2026 school years. At a minimum, the District will ensure the following:

1. By no later than the first day of the 2024-2025 school year, each high school provides equivalent access for both sexes to utilize the facility's weightroom;
2. By no later than the first day of the 2024-2025 school year, each high school provides equivalent access and availability of its locker room for both sexes;
3. By no later than the first day of the 2024-2025 school year, each high school provides equivalent preparation and maintenance of its facilities for practices and competitive events for both sexes, specifically addressing any disparities that exist as it relates to maintenance of practice and competitive facilities and preparation for girls volleyball, girls badminton, and girls softball;
4. By no later than the first day of the 2024-2025 softball competitive season, the girls softball teams are provided with equivalent availability and access to their practice and competitive facilities;

5. By no later than the first day of the 2024-2025 softball competitive season, the girls softball teams are provided with equivalent opportunity to complete their competitive games at the competitive facilities;
6. By no later than the 2026-2027 school year, each high school provides equivalent number and quality of locker rooms, practice and competitive facilities to both male and female interscholastic participants;
7. By no later than the 2026-2027 school year, the practice and competitive softball fields are equivalent in quality and amenities to facilities used by other teams, specifically addressing the lack of opportunity for girls softball team to practice and compete in facilities that are regulation for the sport.

REPORTING REQUIREMENTS VI:

1. **By January 10, 2025**, the District will provide for OCR review and approval a plan (including a timeline and description) to provide both sexes in the District's interscholastic athletics program, equal opportunities in the provision of locker rooms, practice and competitive facilities by the end of the 2026-2027 school year. The plan must include a detailed description of the substantial steps the District has taken and will take towards providing equal athletic opportunity for both sexes in the District's interscholastic athletics program in the provision of locker rooms, practice and competitive facilities during the 2024-2025 and 2025-2026 school years.
2. **By June 30, 2025**, and by that same date annually thereafter, while this Agreement is in effect, the District will provide OCR with a report, documenting the actions taken to provide equal opportunities to members of both sexes in the District's interscholastic athletics program as required Item VI (1)-(7) The report will include photographs of the practice and competitive facilities used by both sexes for softball and baseball. Annual reports thereafter shall include photographs of changes, if any, to the practice and competitive facilities used by both sexes for softball and baseball.

VII. TITLE IX TRAINING

By September 28, 2024, the District will provide its Title IX Coordinator, the District Athletic Director, all District Athletic personnel, all high school Athletic Directors and Principals, and all coaches of interscholastic and club teams at the District with a training on the District's responsibilities under Title IX and its application to athletics, including its obligation to provide equal athletic opportunity for both sexes in all program components and how funding from any source (*e.g.*, booster clubs) can affect the balance of equivalent benefits and services for male and female athletes. The training will be conducted by an individual(s) knowledgeable about Title IX Athletics. Within 15 calendar days following the completion of the Title IX training, the District will conduct a post-training survey of all

District staff who participated in the training to gauge their comprehension and retention of the material.

REPORTING REQUIREMENTS VII:

1. **By August 16, 2024**, the District will provide OCR with the name(s) and qualifications of the proposed trainer(s), and a draft of the proposed materials to accompany the Title IX training for OCR review and approval.
2. **Within 30 calendar days following completion of the Title IX training**, the District will provide OCR with a sign-in sheet or other evidence of attendance by name and title, a list of any required District or School administrators or staff who did not attend and a timeline for their completion of the training, copies of the post-training survey response, and a plan (with timelines) to address any deficiencies identified in the post-training survey.

VIII. TRAINING ON THE DISTRICT'S POLICIES AND PROCEDURES

By no later than January 10, 2025, the District will provide its Title IX Coordinator, the District Athletic Director, all District Athletic personnel, all high school Athletic Directors and Principals, and all in-season coaches of interscholastic and club teams at the District with a training on the District's newly written District-wide Athletic policies and procedure. For coaches who are not in-season at that time, the District will conduct additional trainings prior to the first day of their season. A copy of the procedures will be provided to all coaches. Within 15 calendar days following the completion of the Title IX training, the District will conduct a post-training survey of all District staff who participated in the training to gauge their comprehension and retention of the material.

REPORTING REQUIREMENT VIII:

1. **By January 30, 2025**, the District will provide OCR with a sign-in sheet or other evidence of attendance by name and title, a list of any required District or School administrators or staff who did not attend and a timeline for their completion of the training, copies of the post-training survey response, and a plan (with timelines) to address any deficiencies identified in the post-training survey.
2. **Within 30 days after each additional training provided**, the District will provide OCR with a sign-in sheet or other evidence of attendance by name and title, copies of the post-training survey response, and a plan (with timelines) to address any deficiencies identified in the post-training survey.

IX. DATA RETENTION REQUIREMENT

By no later than the end of the 2024-2025 school year, the District will establish a process for compiling and maintaining an accurate record of the interscholastic sports offered at each District high school. The record will include a listing of the different levels (varsity, junior varsity, sophomore, and freshman) at which each sport is offered for boys and girls at each District high school and the number of students participating in each level of each sport at

each District high school, delineated by sex. The database will also include a listing of the various cooperative teams for District sports as well as a list of the cooperatives teams formed amongst the various District high schools. The process established by the District will include mechanisms for ensuring that the information contained in the record is current, complete, and accurate in a manner sufficient for OCR to determine the District's compliance with this Agreement.

REPORTING REQUIREMENT IX:

1. **By October 31, 2024**, the District will provide OCR with documentation referenced in Item IX of the Agreement. The District will provide verification that a database has been created and provide supporting documentation, including a sample of the database.

GENERAL TERMS AND PRINCIPLES

By signing the Agreement, the District agrees to provide data and other information in a timely manner in accordance with the reporting requirements of the Agreement. During the monitoring of the Agreement, OCR may visit the District, interview staff and students, and request such additional reports or data as are necessary for OCR to determine whether the District has fulfilled the terms of the Agreement.

The District understands that OCR will not close the monitoring of the Agreement until such time as OCR determines that the District is in compliance with the Agreement's terms and the statute(s) and regulation(s) implementing Title IX at 34 C.F.R. § 106.41(c)(1), which is at issue in the case.

The District understands that OCR may initiate administrative enforcement proceedings or refer the case to the Department of Justice (DOJ) for judicial proceedings to enforce the specific terms of the Agreement and the applicable statute(s) and regulation(s). Before initiating such proceedings, OCR will give the District written notice of the alleged breach and sixty (60) calendar days to cure the alleged breach.

The Agreement will become effective immediately upon the signature of the District's representative below.

DATED this 6th day of August 2024.

/s/
Colin Beachy, Chair
Minneapolis Public Schools

/s/
Lori Norvell, Clerk
Minneapolis Public Schools